

CV-25-010637 RAMIREZ, DAVID L vs PACKNIT, DARRIN - a) Plaintiff's Motion to Compel Defendant Darrin Packnit to Respond to Plaintiff's Form Interrogatories (Set One) and for Sanctions - GRANTED; b) Plaintiff's Motion to Compel Defendant JDP Investment/Holding, a California Corporation to Further Respond to Plaintiff's Demand for Production of Documents (Set One) and for Sanctions - CONTINUED, on the Court's own motion; c) Plaintiff's Motion to Compel Defendant Darrin Packnit to Further Respond to Plaintiff's Demand for Production of Documents (Set One) and for Sanctions - CONTINUED, on the Court's own motion; d) Plaintiff's Motion to Compel Defendant JDP Investment/Holding, a California Corporation to Respond to Plaintiff's Form Interrogatories (Set One) and for Sanctions - GRANTED.

County: stanislaus

Division: Civil Law and Motion

Department: 24

Hearing date: 2012-04-02

Motion: a) The Court notes Defendant's service on Plaintiff of verified responses to the discovery at issue rendering the motion partially moot. Defendant waited over 6 months to serve the requested discovery, and only after Plaintiff filed the present motion. Defendant also failed to respond to Plaintiff's meet and confer correspondence, which Plaintiff was not required to submit given that this is not a motion to compel further responses. Notwithstanding the service of said responses, Plaintiff is still entitled to monetary sanctions. California Rules of Court, rule 3.1348(a); Sinaiko Healthcare Consulting, Inc. v. Pacific Healthcare Consultants, (2007)148 Cal.App.4th 390; Deck v. Developers Investment Co., Inc., (2023) 89 Cal.App.5th 808. Plaintiff is therefore awarded monetary sanctions of \$460 for his reasonable attorney fees and expenses incurred in the filing and prosecution of this motion. Said sanctions are payable to Plaintiff's Counsel within fifteen (15) days of the date of service of this order. (Code of Civ. Proc. §§2030.210, 2030.290(c); 2023.030(a); CA ST CIVIL RULES Rule 3.1348 (a)). b) The Court notes Defendant's service of the missing verification by Defendant's authorized agent on Plaintiff on September 1, 2026, with this Opposition, which Plaintiff acknowledges. The Court also notes Plaintiff's request for 30 days from service of the Court's order to provide any further responses the Court deems necessary. In light of the Court's approach regarding the related motions in this matter and the absence of meet and confer herein, the Court is of the view that those 30 days would be well spent by the parties engaging in meet and confer to address and or narrow down any disputed issues regarding Defendant's responses. Accordingly, the parties are hereby ordered to engage in meet and confer "either in person, by telephone or by videoconference" to address and or narrow down the issues in dispute, bearing in mind that parties have a broad right to discovery. ((Civ. Proc. Code §§ 2016.040; 2017.010) Parties are also reminded that civil discovery is intended to be self-executing, and that argument is not the same as informal negotiation. Furthermore, a reasonable and good faith attempt at informal resolution entails something more than bickering with opposing counsel; rather, the law requires that counsel attempt to talk the matter over, compare their views, consult, and deliberate. (Clement v. Alegre (2009) 177 Cal. App. 4th 1277). Good faith meet and confer communication should involve serious efforts at informal negotiation and resolution, including a meaningful assessment of the relative strengths and weaknesses of each party's position in light of all available information. (Townsend v. Superior Court(EMC Mortgage Co.) (1998) 61 Cal.App.4th 1431; Obregon v. Superior Court(Cimm's, Inc.) (1998) 67 Cal.App.4th 424). This matter is accordingly continued to October 7th, 2026, at 8:30 am in Department 24 of this Court. No later than September 30th, 2026, the parties shall submit a joint status statement regarding the meet and confer, identifying issues that have been resolved or narrowed down or that remain to be addressed by the Court. c) The Court notes Defendant's claims of Plaintiff's failure to meet and confer in good faith as well as Defendant's request for the parties to be ordered to "engage in a meaningful, issue-specific meet-and-confer process". The Court also notes Defendant's failure to respond to Plaintiff's meet and confer letter. Therefore, the Court is of the view that the parties would benefit from good faith meet and confer. Accordingly, parties are hereby ordered to engage in meet and confer "either in person, by telephone or by videoconference" to address and or narrow down the issues in dispute, bearing in mind that parties have a broad right to discovery. Civ. Proc. Code §§ 2016.040; 2017.010. Parties are also reminded that civil discovery is intended to be self-executing, and that argument is not the same as informal negotiation. Furthermore, a

reasonable and good faith attempt at informal resolution entails something more than bickering with opposing counsel; rather, the law requires that counsel attempt to talk the matter over, compare their views, consult, and deliberate. Clement v. Alegre (2009) 177 Cal. App. 4th 1277. Good faith meet and confer communication should involve serious efforts at informal negotiation and resolution, including a meaningful assessment of the relative strengths and weaknesses of each party's position in light of all available information. Townsend v. Superior Court(EMC Mortgage Co.) (1998) 61 Cal.App.4th 1431; Obregon v. Superior Court(Cimm's, Inc.) (1998) 67 Cal.App.4th 424. This matter is accordingly continued to October 7th, 2026, at 8:30 am in Department 24 of this Court. No later than September 30th, 2026, the parties shall submit a joint status statement regarding the meet and confer, identifying issues that have been resolved or narrowed down or that remain to be addressed by the Court. d) The Court finds that Defendant has failed to timely respond to Plaintiff's properly propounded Form Interrogatories served on Defendant on February 27, 2026, or at all. The Court further finds that Plaintiff is entitled to responses to said discovery. Code of Civ. Proc., §§2017.010, 2030.290(b). Accordingly, Plaintiff's Motion is hereby granted. Any objections by Defendant to said discovery are hereby waived. Defendant is hereby ordered to provide verified, code compliant, objection-free responses to said Form Interrogatories, Set One, within thirty (30) days of the date of service of this order. Code of Civil Procedure §§2030.290(a) and (b); 2031.300(a) The Court also finds that said failure to respond is without substantial justification and accordingly finds that Plaintiff is entitled to monetary sanctions of \$260 for attorney's fees and costs reasonably incurred in bringing this motion Said sanctions are payable to Plaintiff's Counsel within fifteen (15) days of the date of service of this order. Code of Civ. Proc. §§2030.210, 2030.290(c); 2023.030(a); CA ST CIVIL RULES Rule 3.1348 (a). The following is the tentative ruling for a case calendared before Commissioner Richard Moths in Department 19 located at the Turlock Division at 300 Starr Avenue, Turlock, CA:

Source URL: <https://www.stanislaus.courts.ca.gov/online-services/tentative-rulings/civil-tentative-rulings>

Source SHA-256: c28f332b0ffaf02cfdae3b39a8a14da332a04c99babc0d2a050b519ac86b9f4b

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a) The Court notes Defendant's service on Plaintiff of verified responses to the discovery at issue rendering the motion partially moot.

Defendant waited over 6 months to serve the requested discovery, and only after Plaintiff filed the present motion. Defendant also failed to respond to Plaintiff's meet and confer correspondence, which Plaintiff was not required to submit given that this is not a motion to compel further responses.

Notwithstanding the service of said responses, Plaintiff is still entitled to monetary sanctions. California Rules of Court, rule 3.1348(a); Sinaiko Healthcare Consulting, Inc. v. Pacific Healthcare Consultants, (2007)148 Cal.App.4th 390; Deck v. Developers Investment Co., Inc., (2023) 89 Cal.App.5th 808. Plaintiff is therefore awarded monetary sanctions of \$460 for his reasonable attorney fees and expenses incurred in the filing and prosecution of this motion. Said sanctions are payable to Plaintiff's Counsel within fifteen (15) days of the date of service of this order. (Code of Civ. Proc. §§2030.210, 2030.290(c); 2023.030(a); CA ST CIVIL RULES Rule 3.1348 (a)).

b) The Court notes Defendant's service of the missing verification by Defendant's authorized agent on Plaintiff on September 1, 2026, with this Opposition, which Plaintiff acknowledges. The Court also notes Plaintiff's request for 30 days from service of the Court's order to provide any further responses the Court deems necessary.

In light of the Court's approach regarding the related motions in this matter and the absence of meet and confer herein, the Court is of the view that those 30 days would be well spent by the parties engaging in meet and confer to address and or narrow down any disputed issues regarding Defendant's responses.

Accordingly, the parties are hereby ordered to engage in meet and confer "either in person, by telephone or by videoconference" to address and or narrow down the issues in dispute, bearing in mind that parties have a broad right to discovery. ((Civ. Proc. Code §§ 2016.040; 2017.010))

Parties are also reminded that civil discovery is intended to be self-executing, and that argument is not the same as informal negotiation. Furthermore, a reasonable and good faith attempt at informal resolution entails something more than bickering with opposing counsel; rather, the law requires that counsel attempt to talk the matter over, compare their views, consult, and deliberate. (Clement v. Alegre (2009) 177 Cal. App. 4th 1277). Good faith meet and confer communication should involve serious efforts at informal negotiation and resolution, including a meaningful assessment of the relative strengths and weaknesses of each party's position in light of all available information. (Townsend v. Superior Court(EMC Mortgage Co.) (1998) 61 Cal.App.4th 1431; Obregon v. Superior Court(Cimm's, Inc.) (1998) 67 Cal.App.4th 424).

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c) The Court notes Defendant's claims of Plaintiff's failure to meet and confer in good faith as well as Defendant's request for the parties to be ordered to "engage in a meaningful, issue-specific meet-and-confer process". The Court also notes Defendant's failure to respond to Plaintiff's meet and confer letter. Therefore, the Court is of the view that the parties would benefit from good faith meet and confer.

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d) The Court finds that Defendant has failed to timely respond to Plaintiff's properly propounded Form Interrogatories served on Defendant on February 27, 2026, or at all. The Court further finds that Plaintiff is entitled to responses to said discovery. Code of Civ. Proc., §§2017.010, 2030.290(b).

Accordingly, Plaintiff's Motion is hereby granted. Any objections by Defendant to said discovery are hereby waived. Defendant is hereby ordered to provide verified, code compliant, objection-free responses to said Form Interrogatories, Set One, within thirty (30) days of the date of service of this order. Code of Civil Procedure §§2030.290(a) and (b); 2031.300(a)

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